

Judgment Sheet
IN THE LAHORE HIGH COURT, RAWALPINDI BENCH,
RAWALPINDI
JUDICIAL DEPARTMENT

Criminal Appeal No. 551 of 2010.

(Mehboob Khan etc Vs. The State)

JUDGMENT

Date of Hearing 12.06.2013.
Appellants by Mr. M. Kokab Iqbal, Advocate.
Respondent by Rana Kashif Saleem Arfaa, Law Officer.

AALIA NEELUM, J Mehboob Khan, Muhamad Yaqoob both sons of Muhammad Sadiq and Muhammad Asif son of Muhammad Bakhsh, all residents of Dhoke Jahmat Dakhli, Darhna, District Chakwal. The appellants were involved in case FIR No.645, dated 14-08-2009, offence under Section 365-A PPC, read with section 7 Anti Terrorism Act, 1997, registered at Police Station Airport, District Rawalpindi and were tried by the learned Special Judge, Anti-Terrorism Court-II, Rawalpindi. The learned trial court in terms of judgment dated 14-07-2010 convicted the appellants under Section 365-A PPC read with Section 7(e) of the Anti-Terrorism Act, 1997 and sentenced each of them to undergo imprisonment for life (R.I) with a direction to forfeiture of their property with benefit of Section 382-B Cr.P.C.

2. Feeling aggrieved by the judgment of the learned trial court Mehboob Khan, Muhamad Yaqoob and Muhammad Asif appellants assailed the same through the instant appeal.

3. The prosecution story as alleged in the FIR (Ex.PB/1) lodged on the application of Saqib Awan, complainant is that he

is resident of DHA Phase-II, Sector B, Street No.5, Islamabad; that on 13.08.2009 at about 1:45 P.M, his wife namely Mst. Maryam Saqib went to the house of her mother, who lived in Scheme No-II; that at about 3:15 P.M, she along with her Driver namely Mehboob Khan (appellant No.1) went for shopping on a car bearing No.NK-164 and when he tried to contact with his wife on mobile phone bearing No. 0321-5597230, her mobile phone was switched off and then he tried to contact with his Driver on his mobile phone bearing No. 0300-9710186, his mobile phone was also not responding, on which he started search of his wife from relatives etc. On 14-08-2009 at about 11:00 A.M, a call was made by his wife from her mobile phone and informed that she was abducted for the purpose of ransom and the accused were demanding heavy amount for her release. The complainant suspected that the driver of his wife namely Mehboob Khan (appellant No.1) is involved in the occurrence.

4. On the application of Saqib Awan (PW-3)/complainant, the formal FIR (Exh.PB/1) was recorded by Muhammad Bashir Sub Inspector (PW-4). After the registration of the case, the matter was investigated by Shahbaz Ahmed Inspector (PW-8). Thereafter, he reached at the place of occurrence and after inspecting the same, prepared site plan (Ex.PG). On receiving information from the complainant (PW-3) that ransom amount has been settled with the accused/appellants along with the place, where the accused will bring the abductee & the car, the investigating Officer (PW-8) launched a raiding party and went to the Gulraiz-III near Water Tank, at about 7 P.M. The appellants/accused persons came on the car of complainant (PW-3) with fake number plate RIA-174 and wife of the complainant namely Mst. Maryam Saqib was also with them in a car but when the complainant approached near the car with bag containing currency notes of Rs.01 lac in denomination of Rs.100/-, the accused persons came out of the car and when the

complainant handed over the bag to the accused persons, the police came out from different hidden places. On seeing the police party, the accused persons brandishing their pistols tried to flee away but police party apprehended them along with their arms, bag of money and also recovered the wife of the complainant namely Maryam Saqib from the clutches of the accused persons. The Investigating Officer took into possession the bag (Ex.P3) and amount worth Rs.1,00,000/-(Ex.P4) denomination of ten bundles of one hundred rupees each (Ex.P4/1-10) vide recovery memo (Ex.PC). On personal search of Muhammad Yaqoob-Appellant No.2, one pistol (Ex.P7) and three live bullets (Ex.P8/1-3) were recovered and taken into possession through (Ex.PE). On personal search of Mehboob Khan/Appellant No.1, one pistol (Ex.P9) and five live bullets (Ex.P10/1-5) were recovered and same were taken into possession through (Ex.PF) and from possession of Muhammad Asif/Appellant No.3 one pistol (Ex.P5) along with four live bullets (Ex.P6/1-4) were recovered and the same were taken into possession through (Ex-PD), which was attested by Mushtaq PW and complainant (PW-3). The police officials prepared site plans (Ex.Ph), (Ex-PI) and (Ex-PJ) respectively. On 27.08.2009, the statement of the abductee was got recorded under section 164 Cr.P.C by the learned Judicial Magistrate under the order of learned Sessions Judge. On 28.08.2009 Shahbaz Ahmed Inspector, (PW-8) inspected the house in Afshan Colony on the pointing by the accused. He recovered red colour purse (Ex.P1) and ID card of the abductee (Ex.P2), which were taken into possession through (Ex-PA). During the course of investigation, the accused/appellants were found guilty. The Investigating Officer, while placing their names in column No.3 of the report prepared under Section 173 Cr.P.C sent the same to the court of competent jurisdiction for trial.

5. After submission of challan, the accused were summoned by the learned trial court and in terms of order dated 16-10-2009, the learned court seized with the matter and formally charge sheeted the accused/appellants, to which they pleaded not guilty and claimed trial. The prosecution in order to prove its case produced as many as nine prosecution witnesses, Mst Maryam Saqib, abductee/victim of the case has appeared as PW-1, Saqib Awan (PW-3), who had witnessed the occurrence after deal with the accused persons regarding payment of ransom amount, raid, arrest of accused persons, recovery of abductee, recovery of car with fake number plate bearing No.RIA- 174 and recoveries of pistols from the accused persons, Qamar-ud-Din Constable (PW-5), Bilal Azram Constable (PW-6) and Waheed Ashraf Constable (PW-7) were the members of raiding party, whereas, Shahbaz Ahmed Inspector (PW-8) conducted raid and is the Investigating Officer, Ch. Muhammad Taufiq, the then Judicial Magistrate as (PW-9) recorded statement of abductee under section 164 Cr.P.C.

6. The learned Public Prosecutor through his statements recorded on 08-03-2010, 31-03-2010 and 29-04-2010 gave up Mushtaq Awan, Abid Ali, Muhammad Nadeem and Azhar Mehmood PWs being unnecessary and thereafter closed the prosecution evidence on 21-06-2010.

7. All the appellants were examined under section 342 Cr.P.C, wherein they opted not to produce defence evidence as provided under Section 340(2) Cr.P.C to disprove the allegations leveled against them. On a question, why the case was recorded against him and why the PWs deposed against him, Mehboob Khan-appellant No. 1 made the following deposition, which is as under:-

"Due to suspicion the PWs have deposed against me at the instance of the police, who were in collusion with the complainant."

While putting a similar question, Muhammad Yaqoob-appellant No.2 made the following deposition, which is as under:-

"Because of suspicion the complainant involved Mehboob Khan my cousin. I and Asif cousins of Mehboob Khan protested to the complainant against falsely implicating Mehboob Khan in the matter on which there was exchange of hot words with the complainant who became antagonized and involved me in the case."

While putting the same question, Muhammad Asif-appellant No.3 made the following deposition, which is as under:-

"Due to suspicion and due to the fact that I and my cousin Muhamad Yaqoob had protested to the complainant for involving our cousin Mehboob in the case and there was exchange of hot words with him who was antagonized, involved me and my cousin Muhammad Yaqoob also."

8. The learned trial court after hearing the arguments advanced by the prosecution as well as defence, while evaluating the evidence available on record, found the version of the prosecution proved beyond any shadow of doubt against the appellants,

which resulting into their conviction in the above stated terms.

9. Learned counsel for appellants, while addressing the arguments stated that the appellants have been falsely roped in this case; that the complainant is Barrister by profession, who had not explained the reason that why he did not lodge the report of disappearance of his wife and the FIR was registered with the delay of 24 hours and it would be highly improbable that the venue of abduction should have been selected to be the Murree Road in front of Moti Plaza, where there is a heavy rush of traffic and pedestrians remained there all the time; that no person from public was associated for effecting recovery of the abductee, ransom amount, the car and the alleged pistols, from where the accused were apprehended i.e. Filtration Plant in Gulraiz III; that the eye witness Mushtaq Awan PW was given up by the prosecution, who was the important recovery witness; that all the prosecution witnesses are police officials besides complainant & alleged abductee, who while appearing before the learned trial court made improvements in their statements; that the learned trial court was not justified in convicting the appellants while basing upon such sketchy and uncorroborated evidence and that the prosecution case is highly doubtful so the appellants are entitled to the acquittal.

10. Contrarily, the learned Law Officer vehemently opposed the contentions raised by the learned counsel for the appellants. The learned Law Officer has stated that prosecution fully proved its

case on the basis of sound material; that the appellants were rightly implicated in the case; that there is no reason to disbelieve the evidence of PWs including the victim/abductee PW-1; that the ocular account regarding later part of abduction i.e recovery of the amount, arrest of the accused as red handed, recovery of the abductee, car and purse and ID card of abductee is corroborated through the prosecution evidence; that all the witnesses strongly corroborated the prosecution version; that the appellants committed a heinous offence, who were also found guilty during the course of investigation; that in our society such incidents are increasing rapidly, which creating insecurity among the general public and that the accused persons after abducting the pregnant woman, kept her away from her dear ones for four days, therefore, they deserve no leniency; that the learned trial court by examining the prosecution evidence available on the record rightly convicted the appellants and no exception can be made to the well reasoned judgment of the learned trial court.

11. Arguments from both the sides have been heard. We have also gone through the record available on file with the able assistance of learned counsel for the appellants as well as learned Law Officer.

12. We find that Mst. Maryam Saqib (PW-1) has fully supported the prosecution story and she gave the details of her abduction. She was subjected to lengthy cross-examination but the defence could not shadow her evidence. On the other hand statement

of the complainant (PW-3) fully established the fact of abduction and delivery of ransom amount to the appellants. The complainant (PW-3) gave details of deal with the accused and the ransom amount was to be paid on 18-08-2010. The complainant (PW-3) also corroborated that he informed the investigating Officer about the time and place of delivery of money. The prosecution witnesses PW-3, PW-5 to PW-8 categorically stated that the appellants arrived at Filtration Plant in Gulraiz III to collect ransom money amounting to Rs.1,00,000/- and they were apprehended at the spot by the raiding party and recovered the ransom amount, abductee, car and pistols. We see no reason for false implication of the appellants by the complainant (PW-3) coupled with the facts that during raid conducted by Shahbaz Ahmed Inspector, (PW-8), accused-appellants were apprehended red handed and ransom amount was recovered from them. The contention of learned counsel for the appellants that statement of alleged abducted under section 164 Cr.P.C has been recorded after nine days of the occurrence have no legal value and that two accused/appellants No. 2 and 3 boarded in the said car at Moti Plaza and the abductee had ample opportunity to make hue & cry for her rescue but she did not make any such effort, is devoid of force. Mst. Maryam Saqib (PW-1) abductee/victim in her cross-examination stated, which is reproduced as under:

“I did not raise hue and cry during my confinement for four days because I was pregnant and I was afraid because the accused were having guns with them.”

The defence had not put any suggestion against the above statement. The perusal of the statement of Mst. Maryam Saqib (PW-1) abductee/victim shows that she was subjected to lengthy cross-examination but nothing adverse to the prosecution version could be detected favouring the appellant. The statement of Mst. Maryam Saqib (PW-1), in isolation is an incriminating material, which cannot be easily discarded and the defence has also failed to even create a single dent in her testimony. Car bearing forged number RIA-174 used for abduction during the occurrence was also taken into possession. Hence, keeping in view the fact of abduction of Mst. Maryam Saqib (PW-1), which remained un-rebutted coupled with the statements of PW-5 to PW-8 and PW-3, who had made the payment of ransom amount to the accused, recovery of car bearing forged registration No. RIA-174 and the fact that the appellant was found guilty during the course of investigation, we find that the prosecution proved its case against Mehboob Khan, Muhamad Yaqoob and Muhammad Asif appellants to their guilt beyond any shadow of doubt. The appellants have failed to lead a single circumstance to rebut the prosecution evidence and the reasons advanced by the learned trial court while convicting the appellants are confidence inspiring, therefore, we see no infirmity in the conviction recorded by the learned trial court, while delivering judgment dated 14-07-2010 against the appellants. Resultantly, Crl. Appeal No.551/2010 filed by Mehboob Khan, Muhamad Yaqoob and Muhammad Asif appellants, being devoid of force, is hereby dismissed. Sentence

and conviction passed by the learned trial court through the impugned judgment is maintained.

(KH. IMTIAZ AHMAD)
JUDGE

(AALIA NEELUM)
JUDGE

Announced in open Court on_____2013.

Judge

Judge

Approved for reporting.

Tariq